



SAMPLE APARTMENT LEASE

New Move-In	_____
Transfer From	_____
Renewal	_____

The Apartment Lease is made this _____ day of _____ between _____, authorized agent for owner and the following person(s): _____

_____ agrees to rent the herein below described Premises to only the above listed person, and if more than one person, shall each be jointly liable hereunder and all are collectively referred to as "Resident".

Property: _____ Apartment: _____ Parking Sp #: _____ Garage/Storage: _____
Address: _____ (street) _____ (City, State, Zip)

The following items of furnishings and personal property are included herein:

MONTHLY RENT, NON-REFUNDABLE FEES AND REFUNDABLE DEPOSITS			
MONTHLY RENT		NON-REFUNDABLE FEES	
Rent	_____	Administrative Fee	_____
Pet Rent	_____	Pet Fee	_____
Utility	_____	Application	_____
Other	_____	Other	_____
Other	_____	Other	_____
Sub Total	_____		_____
Sales Tax* 0.00% (rate)	_____		_____
Monthly Total	_____		_____
_____ has the right to adjust the rent should there be any change in the percentage of the tax charged by any municipality, all in accordance with A.R.S. § 33-1314.			

1. PAYMENTS AND PRORATIONS: Upon execution, Resident agrees to pay the full monthly rent plus tax, if applicable, security deposit and non-refundable fees in the form of certified funds or cashier's check. On the first day of the following month, Resident shall pay the prorated rent, other and taxes as defined below. Resident agrees to pay in advance the total due monthly in the form of a check or certified funds on or before the first calendar day of each and every month, at the Apartment Community or such other place as _____ may designate by written notice to the Resident. Only one check shall be accepted per Apartment per month.

Prorated Rent, other and taxes: _____ For the partial month ending: _____
2. NON-REFUNDABLE FEES: Upon execution, Resident agrees to pay a non-refundable administrative fee, pet fee, and other fees as described above, which shall not be refunded under any circumstances.

3. DEPOSITS:
3.1 Refundable Security Deposits: Concurrently with the execution hereof, Resident agrees to pay in full to _____ the Refundable Security Deposits, as described above, as security for the faithful performance of Resident's obligations hereunder. _____ shall be entitled to deduct from the Refundable Security Deposits the sum of \$10.00 for each apartment key not returned by the Resident upon vacating the Premises. Such amounts as may be necessary to remedy Resident's defaults in the payment of rent, other charges equivalent to rent and utility charges, and such other amounts as may be necessary to compensate _____ for damages to the Premises occasioned by Resident's non-compliance with the provisions of paragraph 9 & 11 below. The taking or application of security as provided herein shall not preclude _____ from exercising any other remedy of this Lease or Resident's violation of the Arizona Residential Landlord and Tenant Act. No portion of the Refundable Security Deposit may be used by Resident as credit for rent owed to termination or expiration of this lease. Resident shall not be entitled to interest accrued on security deposits.

3.2 Conditions for Refund/Notice and Move-Out: Resident must give _____ a written notice of intent to vacate not less than THIRTY (30) days prior to the ending date of this Apartment Rental Agreement or THIRTY (30) days prior to the periodic due date (1st day of each month) as defined in paragraph 1. (For example, notice to vacate premises October 31 would have to be received on, or no later than October 1st. Notice submitted after October 1st will be construed as effective the first of the following month for a move out of November 30). The full term of the Apartment Rental Agreement must have ended. At the time of move-out all rents must be Paid in Full. The Resident must leave the apartment in clean and habitable condition, normal wear and tear excepted. Provisions for move-out inspection will be made by _____ upon receipt of the written THIRTY (30) day notice of intent to vacate. The Resident must supply _____ complete information of forwarding address for notification of disposition of deposit, and/or return of deposit, if applicable. With full compliance with this Apartment Rental Agreement, and FULL compliance of the Rules and Regulations or the House Rules and/or attached addendum. FULL compliance of all applicable statutes and upon demand for return of refundable deposits _____ and shall timely deliver to the Resident any remaining balance of refundable deposits.

4. TERM: Lease Term in Months _____, plus _____ days commencing on _____ and ending on _____
(term) (days)
The term of this Rental Agreement shall be for the term described above. Upon expiration, this Agreement shall automatically continue on a month-to-month basis at a rate which shall be \$100 above market rent until a new Rental Agreement is executed, or until either _____ or Resident terminates this Agreement by delivering to the other a written termination notice at least thirty days prior to the end of any calendar month as defined in section 3.2 above.

5. TERMINATION PRIOR TO LEASE EXPIRATION: Except as allowed by law, if resident terminates prior to the term of the agreement for any reason, the resident shall be obligated to give one month written notice, as stated above. In addition to the rent due for the 30-day notice period, a buy-out fee in the amount of one month's rent will be due and payable by certified check or money order upon submission of the notice to vacate. Further, the resident shall be obligated to pay any move-in incentives given at the time of move-in as per section 5.1. In the event that all buy out fees, including concession reimbursement, are not paid by the time of move out, Resident will be charged an additional month's buy out fee. The resident also agrees to leave apartment clean and undamaged less normal wear and tear.

5.1 If Resident is given any rent deduction, rebate, bonus, property, or anything of value, as an inducement to enter into this agreement, it is agreed that Resident shall be obligated to reimburse Management for the full amount of the incentive upon submission of notice to vacate in the event Resident is terminating the lease prior to term. .

6. LATE CHARGES: Rent is due on the first day of each month. If rent is not paid by the 3rd, a late charge of \$50.00 will be added to the rent. An additional charge of \$10.00 shall be added for each day thereafter, until rent is paid in full. Certified check or cashier's check must be used if rent is late.

7. SPECIAL PROVISIONS:

RESIDENT HAS READ AND RECEIVED AN EXECUTED COPY OF THIS AGREEMENT, INCLUDING THE TERMS ON THE REVERSE, APARTMENT INSPECTION/CHECKOUT REPORT, AND THE COMMUNITY POLICIES, SCHEDULE "A", WHICH RESIDENT AGREES TO ABIDE BY, INCLUDING ANY AMENDMENTS THERETO AND WARRANTS THAT ALL BLANKS HAVE BEEN ACCURATELY COMPLETED OR OTHERWISE MARKED "NOT APPLICABLE (N/A)". THIS RENTAL AGREEMENT IS A LEGALLY BINDING CONTRACT. IF YOU DO NOT UNDERSTAND THIS AGREEMENT, SEEK COMPETENT ADVISE. FALSE INFORMATION GIVEN ON THE RENTAL APPLICATION SHALL ENTITLE _____ TO TERMINATE THIS AGREEMENT.

Resident (Signature) _____	Date _____	Resident (Signature) _____	Date _____
Resident (Signature) _____		Resident (Signature) _____	Date _____
Resident (Signature) _____	Date _____	_____ Subagent for Owner Signature	Date _____



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8. RETURN CHECK CHARGE: Resident agrees to pay as additional rent an administrative fee of \$35.00 for any check that is dishonored for payment. This fee is in addition to applicable late charges. _____ reserves the right to demand monthly rent in the form of certified funds if personal checks are dishonored for payment.

9. UTILITIES: In addition to the rent, Resident shall pay for all public utilities charged against the Premises except for common area water, common area gas, and common area electricity. Resident agrees to furnish _____ receipt for utilities prior to accepting occupancy. Resident will be billed and shall pay a pro-rata share of the water, sewer and trash removal expense based on the use of a Ratio Utility Billing System. The method used to allocate water and sewer costs are based on the number of water fixtures per unit; trash allocations are based on the number of bedrooms per unit. Any and all billing fees associated with the generation of said utility bills are to be paid by Resident. Resident acknowledges that rates may fluctuate from month to month, and waive their right to a 30-day advance notice of change. Resident further agrees that these charges and fees shall be considered additional rent, and failure to remit payment by the due date will result in default under the terms of this lease.

10. INDEMNITY: _____ shall not be liable and Resident shall hold _____ harmless from any and all claims, losses, demands or other liability whatsoever for any injury however suffered by or occurring to any person whatsoever, for any damages or injury however suffered by or occurring to any person, including, without limitation, guests at the Apartment Community, which arise or are caused by any act of commission or omission of the Resident, Resident's occupants, family, guests, invitees or pets. Notwithstanding anything appearing in this paragraph to the contrary, the Resident does not agree to the exculpation or limitation of any liability of M _____ arising under law or to indemnify _____ or that liability or costs connected therewith. RESIDENT IS INFORMED THAT MANAGEMENT'S INSURANCE DOES NOT COVER RESIDENT'S PROPERTY, ACTS, OR OMISSIONS. IT IS REQUIRED THAT RESIDENT OBTAIN "RENTER'S INSURANCE". Said renter's insurance policy must have a minimum \$25,000 liability limit.

11. CONDITION AND CARE OF PREMISES

11.1 Resident shall not change locks, paint, decorate or alter in any way the premises without the prior written permission from _____, and shall not interfere with the quiet use and enjoyment of other residents of the community. Further, Resident shall comply with all state statutes and city ordinances which are applicable to the premises and common areas. Resident has carefully inspected and finds them to be in a clean, habitable, undamaged condition except as may be noted on the apartment inspection/check out report. This report will be used to determine refund of security deposit amount at the end of Resident's tenancy. _____ shall not be liable to Resident's family, invitees and occupants for any damages to person or property caused by the act or neglect by resident, or any other resident or non-resident of the Apartment Community.

11.2 Resident agrees to exercise reasonable care in the use of the Premises, furnishings and Apartment Community and to maintain and redeliver the same in clean and safe condition, free from damage, unsightly debris, equipment or decor. Resident agrees to pay for all repairs, replacements and maintenance caused by his misconduct or negligence, that of his family, invitees, and occupants, and, at _____ option, such charges shall be due and payable immediately or shall be regarded as additional rent to be paid no later than the next date on which rent is due following such repairs. Resident shall immediately report to _____ in writing when any locks, equipment, fixtures, furnishings or portion of the Premises have been damaged or out of repair. Any damage to the Premises, fixtures, furnishings contained therein which is not otherwise explained in writing to _____ within three (3) days after occurrence thereof, shall be presumed to have resulted from the Resident's neglect. Resident shall not allow an undrivable vehicle to remain on the common areas or any other portion of the Apartment Community for more than 24 hours. No car repairs are to be made in or on the common areas or any other portion of the Apartment Community. Any vehicle inoperable or in disrepair shall be subject to towing at the vehicle owner's expense.

11.3 Resident acknowledges that the use of the swimming pool area, clubroom, and other related amenities at the Apartment Community are being furnished by _____ and that no guard or other supervision over the use of the swimming pool and facilities will be provided; and, fully understands the risks associated with the foregoing. Resident hereby assumes for himself, his family, occupants, and guests any and all risks associated with the use of said pool and facilities, and agrees that _____ shall not be liable for any harm sustained by resident, his family, occupants, or guests in connection with said risks. Resident further understands and agrees that the use of any facility or amenity on the Apartment Community is restricted to Resident and family, and that express consent must be given by _____ prior to another person's such use of facility or amenity.

12. USE: The leased Premises shall be occupied and used only as a residential unit, any other use is prohibited. The unit shall be occupied only by the persons set forth on this lease.

13. ACCESS: Resident shall allow _____ access at all reasonable times to the Premises for the purpose of inspection or to show said apartment to prospective purchasers, mortgagees, or any other persons having legitimate interest therein, or to make necessary repairs or improvements. _____ shall give resident at least two (2) days notice of management's intent to exercise its right of access, except in cases of emergency where notice shall be impractical, or where the resident has abandoned the premises or had failed to properly maintain the premises. In the event of the death of a resident, access will be granted to co-appllicant only, or if no co-appllicant exists, Management shall give access to those parties indicated on rental application. Residents request for repairs shall constitute Resident's consent to enter the premises for inspection or repairs.

14. DEFAULT: The failure by either Resident or _____ to fully perform this rental agreement in any manner shall entitle either party to take all actions against the defaulting party as shall be provided by law. All costs, attorney fees, any other expenses in enforcing this agreement shall be paid to the prevailing party by the losing party. Resident further agrees that any and all fees incurred by _____ for legal process service are to be paid by Resident, including a \$25.00 charge for any legal notice served upon Resident. Resident waives any

15. SUBORDINATION: This Agreement is and shall remain subordinate to any ground lease, mortgage, trust deed or any encumbrance or security instrument now existing hereafter to be placed upon the Premises and to any modifications, extensions, replacements and advances in connection therewith.

16. ABANDONMENT: If the resident abandons tenancy as defined in A.R.S. 33-1370(H); and _____ reasonably determines that the cost of the moving, storing, and selling the Resident's personal property would exceed the amount that would be realized from the sale thereof, _____ may, at its option destroy or otherwise dispose of the Resident's

17. NON-WAIVER: Failure of _____ to insist upon the strict performance of the terms, covenants and conditions herein contained that shall not be deemed a waiver of any _____'s rights or remedies herein. If any Court declares a particular provision of this Agreement to be invalid or illegal, all other terms of this Agreement will remain in effect and both _____ and Resident will continue to be bound by them.

18. BINDING EFFECT: This agreement shall be binding and inure to the benefit of the heirs, executors, administrators, successors and assigns of _____ and Resident.

19. HOUSE RULES: The rules provided in the Community Policies (Schedule 2), the receipt of which is hereby acknowledged, and deemed a part of this Agreement and a breach of any rule by Resident or his guests shall constitute a default hereunder.

20. FIRE, CASUALTY AND TAKING: In the event the Premises shall be damaged or destroyed by fire, casualty or taking, the monthly rent payable hereunder by Resident shall be reduced or abated to the extent that such damages or destruction renders the Premises untenable, until such times as the Premises, or what remain thereof after a taking, shall have been repaired or restored to a tenable condition. Nothing contained herein, however, shall require or shall be deemed to require _____ or the owner of the Apartment Community so to restore or repair the Premises.

21. ASSIGNMENT: Resident shall not assign this Agreement to sub-let the Apartment or any part thereof.

22. UTILITY COSTS ADJUSTMENT DURING LEASE TERM: Management shall have the right, upon thirty (30) days notice to Resident, to increase the total rent due by an amount reasonably related to any increase in the cost of utilities including, but not limited to natural gas, electricity, sewer and water. Management, in its sole discretion, shall have the unilateral right during this lease to (i) individually meter or submeter utilities, (ii) allocate a reasonable share of utilities to resident without metering utilities, or (iii) directly bill Resident for all utilities, provided however, that management shall not charge Resident an amount for utilities which is more than what Management paid for such utilities.

23. DRUG USE, ILLEGAL ACTS: Resident shall use the premises in compliance with civil and criminal law. Resident and Resident's guests and invitees shall not possess, consume, sell or distribute on the premises any illegal drug or controlled substance as defined by law and shall not conduct themselves in any manner which would pose a danger to other residents or constitute a public nuisance. Violation of this paragraph, which results in an "Irreparable Breach" of the Rental Agreement as defined in the Act, will be cause for Owner to terminate the rental agreement and proceed to evict Resident immediately.

24. DISCLOSURE OF MANAGEMENT AND NOTICES: _____, with offices at _____, is authorized to act for and on behalf of the owner of the Apartment Community for purposes of service of process and for receiving or receipting notices or demands. To be effective, all notices, demands and other communications directed to _____ shall be in writing and personally delivered during office hours, or mailed by certified mail, return receipt requested, postage prepaid to _____ at the above address or to the resident manager at the office in the Apartment Community. Service or legal process should be made upon _____ through its statutory agent as registered with the Arizona Corporation Commission. (Be advised that Management and Management's Employees are agents and represent the owner).

25. SECURITY: Resident hereby agrees and acknowledges that Management and Owner shall not provide and shall have no duty to provide any security services to Resident or the community. Resident shall look solely to the public police force for security protection and Resident agrees and acknowledges that protection against criminal action is not within the power of Management and Owner, and, even if from time to time Management provides security services, those services cannot be relied upon by Resident and shall not constitute a waiver of, or in any manner modify that above agreement. Management and owner shall not be liable for failure to provide adequate security services or for criminal wrongful actions by others against Resident, Resident's relatives or Resident's guests. Resident further agrees to provide for his own safety and agrees to contact Management and Police Department immediately should criminal activity of any kind be witnessed.

26. LANDLORD/TENANT ACT: As per A.R.S. 33-1322, a free copy of the Arizona Residential Landlord and Tenant Act is available through the Arizona Secretary of State's Office.

The community manager of the premises is:

Agent for Owner/Manager

Address

Phone